

3.—(1) A copy of the record in the registry of a diocese of the vacation under this Measure of the enrolment of a deed of relinquishment duly extracted and certified by the registrar of the diocese shall be evidence of such vacation and of the recording of such vacation. Copy of record to be evidence.

(2) The registrar of the diocese shall, on the application of the clerk in Holy Orders concerned, give to him a copy of such record duly extracted and certified, on payment of a fee not exceeding ten shillings.

4. In this Measure the terms “the Church of England,” “minister,” “preferment,” “bishop” and “diocese” have the same meaning as in the Act. Interpretation.

5. This Measure may be cited as the Clerical Disabilities Act, 1870 (Amendment) Measure, 1934. Short title.

No. 2.

A MEASURE passed by the National Assembly
of the Church of England.

To amend and declare the law relating to the publication of Banns of Marriage and for purposes connected therewith.

[31st July 1934.]

1.—(1) Whenever upon any Sunday in any church or other building in which banns of marriage may for the time being lawfully be published a clerk in Holy Orders does not officiate at the service at which it is usual in that church or building to publish banns, then such publication may be made therein either (a) by a clerk in Holy Orders at some other service at which banns of marriage may lawfully be published, or (b) by a layman, but in the latter case only if the following conditions are complied with (that is to say) :— Publication of banns by lay persons in certain cases.

(i) Such publication must be made during the course of a public reading authorised by the

bishop of a portion or portions of the service of Morning or Evening Prayer, such public reading being at the hour when the service at which it is usual to publish banns is commonly held, unless the bishop shall authorise otherwise;

- (ii) The incumbent or minister in charge of the said church or building, or some other clerk in Holy Orders nominated in that behalf by the bishop, must before the first of such publications have made or authorised to be made the requisite entry in the register book of banns of the said church or building.

4 Geo. 4.
c. 76.

(2) Whenever a layman shall have published banns of marriage under this Measure he shall sign the register book of banns kept under section six of the Marriage Act, 1823, and for that purpose shall be deemed to be the officiating minister within the meaning of that section, and a certificate of due publication of such banns signed by the incumbent or minister in charge of the church or other building in which the publication shall have been made or by some other clerk in Holy Orders nominated in that behalf by the bishop shall be equivalent to a like certificate given by a clerk in Holy Orders who has published banns.

8 Edw. 7.
c. 26.

(3) Except under and subject to the express provisions of this Measure and except as provided by section one of the Naval Marriages Act, 1908, it shall not be lawful for any person other than a clerk in Holy Orders to publish banns of marriage.

Extent.

2. This Measure shall apply to the whole of the Provinces of Canterbury and York except the Channel Islands and the Isle of Man, but may be applied to the Channel Islands as defined in the Channel Islands (Church Legislation) Measure, 1931, or either of them, in accordance with that Measure.

Short title.

3. This Measure may be cited as the Banns of Marriage Measure, 1934.

No. 3.

A MEASURE passed by the National Assembly
of the Church of England.

To amend the law relating to Cathedral Churches.
[31st July 1934.]

1. Without prejudice to the generality of the provisions of section two of the *Cathedrals Measure*, 1931, (in this Measure referred to as “the principal Measure”) defining the principal function of the Cathedral Commissioners for England (in this Measure referred to as “the Commissioners”) a scheme under the principal Measure may contain all or any of the following provisions, that is to say :—

General provisions as to schemes under the principal Measure.

- (i) such scheme may provide that any body of persons to whom this paragraph applies shall be a body corporate with perpetual succession and a common seal with power to hold land including rights of patronage to the extent defined by such scheme without licence in mortmain;

This paragraph shall apply to every cathedral chapter established under the principal Measure, and to every other cathedral chapter established in a cathedral church which is not a body corporate or which being a body corporate should, in the opinion of the Commissioners, be re-incorporated, to every cathedral council established under the principal Measure, and to every other body established under the principal Measure or otherwise in a cathedral church;

- (ii) such scheme may (subject in any case where a cathedral council is established under section eleven of the principal Measure to the provisions of subsection (5) of that section) determine the body by which the powers and duties conferred and imposed by the principal Measure upon the